

Functions which may be carried out by a justices' legal adviser

[The Family Court Practice \(The Red Book\)](#) > [Part III Procedure Rules \(FPR and CPR\)](#) > [SI 2010/2955 Family Procedure Rules 2010](#) > *Practice Direction 2C – Justices' Legal Adviser*

Practice Direction 2C –

Justices' Legal Adviser

[3.19]

This Practice Direction supplements FPR Part 2, rule 2.5(1A)

Functions which may be carried out by a justices' legal adviser

[3.20]

1

The functions of the family court or a judge of the family court that may be carried out by a justices' legal adviser are the functions of the family court or of a judge of the court specified in the provisions listed in column 1 of the table subject to the exceptions or restrictions specified in column 2 in relation to particular functions.

End of Document

Duty to refer if inappropriate to carry out function

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[3.21]

2

When considering a function specified in the table –

- (a) a justices' legal adviser must consider whether in the particular circumstances it would be inappropriate to carry out the function; and
- (b) if a justices' legal adviser determines that it would be inappropriate to carry out the function, the justices' legal adviser must refer the matter to the court.

Table

Column 1	Column 2
FPR rule 3.3	
FPR rule 3.4	
FPR rule 3.10	
FPR rule 3.AB	
FPR rule 4.1(3)(a)	Except any extensions in public law proceedings that would have the effect that disposal of the application would occur later than the end of twenty-six weeks beginning with the day on which the application was issued.
FPR rule 4.1(3)(b), (c), (d), (f), (h), (j), (k), (n), (o)	
FPR rule 4.3(2)	
FPR rule 4.3(5)	
FPR rule 4.7(a) and (b)	
FPR rule 6.14(4) and (6)	
FPR rule 6.16(1)	
FPR rule 6.19	
FPR rule 6.20	
FPR rule 6.24(2)	
FPR rule 6.26(5)	
FPR rule 6.32	
FPR rule 6.36	
Practice Direction 6A, paragraph 11.1	
the 1973 Act, sections 1(3), 1(4) and 1(5)	Only in standard cases, and only the making final of conditional orders of divorce
the 1973 Act, section 6(2)	Only where the parties consent to the adjournment
the 1973 Act, sections 10A(2) and (3)	Only in an application under section 10A(2) to which the other party consents
the 1973 Act, section 17(1B)	Only in standard cases
the 2004 Act, section 37(1)(a) and (d)	Only in standard cases, and only the making 'final' of such orders
the 2004 Act, section 42(3)	Only where the parties consent to the adjournment
the 2004 Act, sections 44(4)	Only in standard cases

Duty to refer if inappropriate to carry out function

FPR rule 7.8(3)(b)	
FPR rule 7.8(4)	
FPR rule 7.10(2)	
FPR rule 7.10(3)	
FPR rule 7.10(4)	
FPR rule 7.23(1)(d)(ii) and (3)	Only where the application under section 10A(2) was made on consent
FPR 7.19(4)	
FPR rule 8.20(4)	Only where the parties consent to the person being made a respondent and where the person is not a child
FPR rule 9.18	
FPR rule 9.20	
FPR rule 9.26	
FPR rule 9.46(2)	
FPR rule 10.3(1)	
FPR rule 10.6(2)	
FPR rule 10.7	
FPR rule 12.3(2)	Only where the parties consent to the person being made a respondent and where the person is not a child
FPR rule 12.3(3)	Only where the parties consent to the person being made a respondent and where the person is not a child
FPR rule 12.3(4)	Only where otherwise authorised to add or remove the person as a party
FPR rule 12.4(5)	Only where the parties consent to the person being made a respondent and where the person is not a child
FPR rule 12.5(1)	
the 1989 Act, section 32(1)	
the 1989 Act, section 32(4)	Except that the carrying out of such function must not have the direct or indirect effect of extending the timetable for the proceedings with the effect that the disposal of the application would occur later than the end of twenty-six weeks beginning with the day on which the application was issued
FPR rule 12.5(2)	Except at an Issues Resolution Hearing for which Practice Direction 12A makes provision, and except the carrying out of any function that has the direct or indirect effect of extending the timetable for the proceedings with the effect that the disposal of the application would occur later than the end of twenty-six weeks beginning with the day on which the application was issued
FPR rule 12.6(a)–(c)	
the 1989 Act, section 7(1) and FPR rule 12.6(d)	
FPR rule 12.12	Except at an Issues Resolution Hearing for which Practice Direction 12A makes provision, and except any direction in public law proceedings that has the direct or indirect effect of extending the timetable for the proceedings with the effect that the disposal of the application would occur later than the end of twenty-six weeks beginning with the day on which the application was issued
FPR rule 12.13	Except that in any public law proceedings, the carrying out of such function must not have the direct or indirect effect of extending the timetable for the proceedings with the effect that the disposal of the application would occur later than the end of twenty-six weeks beginning with the day on which the application was issued
FPR rule 12.14(3) and (4)	
FPR rule 12.15	Except any direction in a public law proceeding that has the direct or indirect effect of extending the timetable for the proceedings with the effect that the disposal of the application would occur later than the end of twenty-six weeks beginning with the day on which the application was issued
FPR rule 12.16(6)	
FPR rule 12.16(7)	
FPR rule 12.19(2) and (3)	
FPR rule 12.21(1)	

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FPR rule 12.22	
FPR rule 12.73(1)(b)	
Practice Direction 12G, paragraph 1.2	
Practice Direction 12J, paragraph 5, first three bullet points only	
Practice Direction 12J, paragraph 8	
Practice Direction 12J, paragraph 15	
Practice Direction 12J, paragraph 21	
FPR rule 12.24	
FPR rule 12.25(1), (2) and (5)	
FPR rule 12.26	
FPR rule 12.29	
FPR rule 12.30	
the 1989 Act, section 41	
the 1989 Act, sections 10(1) and (2)	Only where – (a) a previous such order has been made in the same proceedings; (b) the terms of the order sought are the same as those of the last such order made; (c) the order is an order in the course of proceedings and does not dispose finally of the proceedings; and (d) a written request for such an order has been made and – (i) the other parties and any children's guardian consent to the request and they or their legal representatives have signed the request; or (ii) at least one of the other parties and any children's guardian consent to the request and they or their legal representatives have signed the request, and the remaining parties have not indicated that they either consent to or oppose the making of the order.
the 1989 Act, section 38(1)	Only where – (a) a previous such order has been made in the same proceedings; (b) the terms of the order sought are the same as those of the last such order made; (c) the order is an order in the course of proceedings and does not dispose finally of the proceedings; and (d) a written request for such an order has been made and – (i) the other parties and any children's guardian consent to the request and they or their legal representatives have signed the request; or (ii) at least one of the other parties and any children's guardian consent to the request and they or their legal representatives have signed the request, and the remaining parties have not indicated that they either consent to or oppose the making of the order.
FPR rule 12.31	
FPR rule 13.3(3)	
FPR rule 13.3(4)	
FPR rule 13.3(5)	
FPR rule 13.5	
FPR rule 13.8	
FPR rule 13.9(1)	Except 13.9(1)(e) and (f)
FPR rule 13.9(3)	
FPR rule 13.9(6)	
FPR rule 13.9(8)	
FPR rule 13.9(9)	
FPR rule 13.11(1)	
FPR rule 13.14	
FPR rule 13.16	
FPR rule 13.17	
FPR rule 13.21(1)	

Duty to refer if inappropriate to carry out function

FPR rule 13.21(4)	
FPR rule 13.22(4)	
FPR rule 14.2(3)	Only where the applicant consents to the removal
FPR rule 14.3(2)	Only where the parties consent to the child being made a respondent
FPR rule 14.3(3)	Only where the parties consent to the person or body being made a respondent or to a party being removed, as the case may be, and only where the person being made a respondent or being removed as a party is not a child
FPR rule 14.3(4)	
FPR rule 14.5(2)(b) and (3)	
FPR rule 14.6(1)	
FPR rule 14.6(2)(a)	
FPR rule 14.6(2)(b)	
FPR rule 14.6(3)(b)	
FPR rule 14.6(4)	
FPR rule 14.7	
the 2002 Act, section 51B(3)	
FPR rule 14.8(1)	Except 14.8(1)(d)
FPR rule 14.8(4)	
FPR rule 14.8(6)	
FPR rule 14.8(7)	
FPR rule 14.9(4)(b)	
FPR rule 14.10(2)	
FPR rule 14.14	
FPR rule 14.16(4) and (7)	
FPR rule 14.18	
FPR rule 14.20	
FPR rule 14.26(1)	
FPR rule 14.27(2)	
Practice Direction 14E, paragraph 1.2	
FPR rule 15.6(3)	
FPR rule 15.6(5)	
FPR rule 15.8(1)(b)	
FPR rule 15.9	
Practice Direction 15B	
FPR rule 16.3(1)	
FPR rule 16.3(2), (3) and (4)	Only in relation to specified proceedings as defined in the 1989 Act, section 41(6)
FPR rule 16.4	
FPR rule 16.11(3)	
FPR rule 16.11(5) and (6)	
FPR rule 16.21	
FPR rule 16.24	
FPR rule 16.30	
FPR rule 16.33	
FPR rule 16.34	
FPR rule 17.3(2)	
FPR rule 17.4	
FPR rule 17.5	
FPR rule 18.3(1)(c)	Only where the parties consent to the person being made a respondent and where the person being made a respondent is not a child
FPR rule 18.4(2)(b)	
FPR rule 18.5(2)(c)	

Duty to refer if inappropriate to carry out function

FPR rule 18.8(4)	
FPR rule 18.9(1)	Only where authorised by this Practice Direction to deal with the application with a hearing
Practice Direction 18A, paragraph 8.1	
Practice Direction 18A, paragraph 10.1	
Practice Direction 18A, paragraph 11.2	
FPR rule 19.1(3)	
FPR rule 19.4(4)	
FPR rule 19.6(2)	
FPR rule 19.8(1)(b)	
FPR rule 19.8(3)	
FPR rule 19.9(2)	
Practice Direction 19A, paragraphs 4.1 and 4.4	
FPR rule 21.2(3)	
Practice Direction 21A, paragraph 2.4	
FPR rule 22.1(1)	
FPR rule 22.3	
FPR rule 22.5	
FPR rule 22.7(1)	
FPR rule 22.9	
FPR rule 22.10	
Practice Direction 22A, paragraph 5.3	
FPR rule 23.4(1)	
FPR rule 23.6(8)	
the 1984 Act, section 31G(2)	
FPR rule 23.9	
FPR rule 24.3	
FPR rule 24.4(2)	
FPR rule 24.7	
FPR rule 24.8	
FPR rule 24.9	
FPR rule 24.10	
FPR rule 24.11(3)	
FPR rule 24.13	
the 2014 Act, section 13	
FPR rule 25.4	
FPR rule 25.8	
FPR rule 25.9	
FPR rule 25.10(2)	
FPR rule 25.10(3)	
FPR rule 25.10(4)	
FPR rule 25.11	
FPR rule 25.12	
FPR rule 25.13	
FPR rule 25.16	
FPR rule 25.17	

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FPR rule 25.18	
FPR rule 25.19	
Practice Direction 25A, paragraph 2.1	
Practice Direction 25B, paragraphs 10.1 and 10.2	
Practice Direction 25E, paragraph 4.1	
FPR rule 26.3	
FPR rule 26.4	
FPR rule 27.3	
FPR rule 27.4	
FPR rule 27.7	
FPR rule 29.1	
FPR rule 29.4	
FPR rule 29.11	
FPR rule 29.14	
FPR rule 29.15	Only where the order in question is one which the justices' legal adviser made
FPR rule 29.16	Only where the order in question is one which a justices' legal adviser made
FPR rule 29.19(5)	
FPR rule 37.9(3)	
The Family Court (Composition and Distribution of Business) Rules 2014, rule 20	

[3.21[1]]

Modifications—Modified by FPR PD36Z for certain applications filed in the periods specified in para 1.3; FPR PD36ZE during the period 1 April 2023 and 28 February 2027.